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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**OBJECTION TO DEFENDANT’S
UNTIMELY MOTION IN LIMINE
TO PRECLUDE THE UTILIZATION
OF ARTICLE I, § 12 OF THE UTAH
CONSTITUTION AND RULE 1102
OF THE UTAH RULES OF
EVIDENCE TO SANCTION THE
ADMISSIBILITY OF HEARSAY
EVIDENCE TO ESTABLISH
PROBABLE CAUSE AT THE
PRELIMINARY HEARING**

Case No. 251403576

Judge Tony F. Graf, Jr.

The State hereby objects to Defendant’s Motion In Limine to Preclude the Utilization of Article I, § 12 of the Utah Constitution and Rule 1102 of the Utah Rules of Evidence to Sanction the Admissibility of Hearsay Evidence to Establish Probable Cause at the Preliminary Hearing. The motion is untimely and constitutes an improper attempt to

obtain a continuance of the preliminary hearing even if the Court denies Defendant's motion to continue that hearing.

INTRODUCTION

Yet again, Defendant has ignored the procedural rules and filed a motion regarding a soon-to-be-held hearing that does not allow enough time for the motion to be fully briefed and for the Court to adequately consider the motion. The Court should not continue to countenance this abusive practice. Rather, it should deny the motion as untimely.

FACTS

1. Since 1995, Utah law has allowed the prosecution to use reliable hearsay to establish probable cause at a preliminary hearing. *See* Utah Const. art I, § 12 (1995); Utah R. Evid. 1102 (1995); *State v. Timmerman*, 2009 UT 58, ¶ 14, 218 P.3d 590.

2. Defense counsel was appointed in this case on September 26, 2025. *See* Dkt. # 42.

3. On December 11, 2025, this Court scheduled the preliminary hearing to begin on May 18, 2026.

4. The victim representative has demanded a speedy trial. *See* Dkt. # 317.

5. Defendant filed his motion challenging the use of hearsay at the preliminary hearing at 7:53 p.m. on Wednesday, May 6, 2026. *See* Dkt. # 525.

OBJECTION

I. The Court should deny the motion as untimely.

Once again, Defendant has filed a motion that affects an upcoming hearing in a way that does not allow for full briefing and consideration of the motion before the hearing.¹ The Court should therefore deny the motion as untimely without considering its merits.

The procedural rules allow a party 14 days to respond to a motion. *See* Utah R. Civ. P. 7(d)(1). Although Defendant's counsel have known about the issues in this motion since the day they were appointed—over seven months ago—Defendant waited to file this motion raising constitutional challenges to the long-standing procedure for preliminary hearings until just 11 days before the preliminary hearing is set to begin. Defendant's delay denies the State its full time to respond to the motion. *See id.* It also denies this Court adequate time to properly consider and rule on the motion without delaying a preliminary hearing that the Court scheduled nearly five months ago.

The motion is also improper because Defendant did not serve it on the Utah Attorney General's Office (A.G. or A.G.'s Office). The rules require Defendant to do so because the motion raises federal constitutional challenges to Utah's Constitution and Rules of Evidence. Defendant was required to serve his motion on the A.G.'s Office "on or before

¹ Defendant used this same tactic before each of the two days of hearings on his motion to disqualify the Utah County Attorney's Office. At the beginning of the first day of the hearing, Defendant made an oral motion asking the court to refer the disqualification motion to the Utah Attorney General's Office. *See* Minute Entry for January 16, 2026. He filed a written motion raising that same argument on Friday, January 30, 2026, just one business day before the hearing on the disqualification motion was to continue on Tuesday, February 3, 2026.

the date” he filed the motion. Utah R. Crim. P. 12(i)(3)(B). The rule allows the A.G. an additional fourteen days after the date for the non-moving party to respond (28 days after the motion is filed, barring any extension of the day to respond), to decide whether the A.G. will also respond to the constitutional challenge. *See id.* R. 12(i)(4)(A).

If the A.G. decides to respond, the Court must allow the A.G. to file a response and participate at oral argument. *See id.* R. 12(i)(4)(B). The A.G. has an additional fourteen days (or forty-two days after the original motion is filed, barring any extension), to file his response. *See id.* R.12(i)(4)(C).

All this compounds the untimeliness of this motion. It takes a minimum of forty-nine days to fully brief this motion, not including the time that the Court would need to review the parties’ briefing and the additional briefing from the A.G.

Despite knowing about this issue since the beginning of this case, Defendant’s delayed filing prevents any of these required procedures from happening without disrupting the preliminary hearing. The Court should not allow Defendant to obtain a *de facto* continuance of the preliminary hearing by flouting the rules. Any delay of the preliminary hearing also delays the trial in this case, and the victim representative has demanded a speedy trial. *See* Dkt. # 317. Until the preliminary hearing occurs, any progress on the merits of this case is effectively halted. Until Defendant is boundover, substantive motions (and corresponding evidentiary hearings) relating to the actual trial may not be had—e.g., rule 702 motions governing the admissibility of expert evidence; rule 403 motions governing unduly prejudicial evidence; rule 404(b) motions governing prior acts evidence; suppression motions; motions for change of venue; and constitutional challenges to the

substantive criminal law. None of these motions are ripe until the Court has held a preliminary hearing and determined that the case may proceed to trial.

This Court has “broad discretion to manage its docket.” *State v. Yusuf*, 2025 UT App 189, ¶ 28, 582 P.3d 1270 (quoting *State v. Gonzalez*, 2015 UT 10, ¶ 24, 345 P.3d 1168) (quotation simplified). This Court’s “discretion to set and enforce motion deadlines is not limited by the importance of constitutional nature of the motion at issue.” *State v. Bergeson*, 2010 UT App 281, ¶ 7, 241 P.3d 777. This Court can deny a motion as untimely even if the motion raises constitutional issues. *See State v. Belgard*, 811 P.2d 211 (Utah App. 1991) (“The waiver doctrine applies with equal force to claims of constitutional violations.”). Given Defendant’s unjustified failure to comply with the procedural rules, this Court should deny the motion as untimely.

CONCLUSION

For the foregoing reasons, the Court should deny Defendant’s motion as untimely without reaching the merits.

Dated May 8, 2026.

Utah County Attorney’s Office

s/ Christopher D. Ballard
Christopher D. Ballard
Deputy Utah County Attorney

CERTIFICATE OF SERVICE

I certify that on May 8, 2026, I filed the foregoing **OBJECTION TO DEFENDANT’S UNTIMELY MOTION IN LIMINE TO PRECLUDE THE UTILIZATION OF ARTICLE I, § 12 OF THE UTAH CONSTITUTION AND RULE 1102 OF THE UTAH RULES OF EVIDENCE TO SANCTION THE ADMISSIBILITY OF HEARSAY EVIDENCE TO ESTABLISH PROBABLE CAUSE AT THE PRELIMINARY HEARING** through the court’s electronic filing system, which served a copy on all counsel of record.

s/ Christopher D. Ballard
Christopher D. Ballard